



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: PLN-22-00007 – Amending UDC Section 1.3 Administration and Enforcement
Date: February 13, 2023

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 02/13/2023
- Public Services Committee 02/22/2023
- 2nd reading 02/27/2023
- Public Services Committee 03/07/2023
- Third and final reading 03/13/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their February 6, 2023 meeting and **voted 5-1** to recommend the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed. There are some minor changes in the ordinance such as adding additional language stating that a final notice letter will also be certified mail and changing a legal reference under the Rules of Procedure for abatement.

Attachments:

1. Ordinance (Clean Version)
2. Ordinance (Redline Version)
3. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 1.3 OF THE UNIFIED DEVELOPMENT CODE (UDC), AMENDING THE ENFORCEMENT REGULATIONS OF THE UDC AND MAKING OTHER CONFORMING AMENDMENTS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Unified Development Code.

Section 2. That on February 6, 2023, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 1.3, Administration and Enforcement, of Article 1, General Provisions, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section.

1.3 ADMINISTRATION AND ENFORCEMENT

- 1.3.1 Purpose
- 1.3.2 Compliance Required
- 1.3.3 Responsible Persons
- 1.3.4 Violations
- 1.3.5 Violation Notice
- 1.3.6 Investigatory Powers
- 1.3.7 Penalties
- 1.3.8 Revocation or Suspension of Permit or License
- 1.3.9 Abatement of Violations
- 1.3.10 Appeals
- 1.3.11 Nonconformances
- 1.3.12 Fees

1.3.1 Purpose

This Section establishes procedures through which the City seeks to ensure compliance with the provisions of this code and obtain corrections for violations of this code. This Section also sets forth the remedies and penalties that apply to violations of this code. The provisions of this Section are intended to encourage the voluntary correction of violations, where possible.

1.3.2 Compliance Required

Compliance with all provisions of this code is required by all persons owning, developing, dividing, managing, using, or occupying land or structures. Failure to comply with a standard, requirement, prohibition or limitation imposed by this code, or the terms or conditions of any permit, approval or authorization granted in accordance with this code, shall constitute a violation of this code punishable as provided in this Section.

1.3.3 Responsible Persons

The owner, tenant or occupant of any land or structure, and an architect, engineer, builder, contractor, agent or any other person who participates in, assists, directs, creates or maintains a situation that constitutes a violation of these regulations, may be held responsible for the violation and be subject to the remedies and penalties set forth in this Section.

1.3.4 Violations

It shall be unlawful for any building, structure, site element or use of land to be constructed, altered, maintained or otherwise initiated in violation of these regulations, or in violation of any amendment, order or decision authorized under these regulations. In addition to any other remedy provided in these regulations, the City may institute proper actions or proceedings to prevent the unlawful activity or situation. Activities that constitute a violation include, but are not limited to, the following:

- a. Creating, expanding, replacing or changing any nonconformity except in compliance with this code;
- b. Reducing or diminishing the requirements for development, design or dimensional standards below the minimum required by this code;
- c. Increasing the intensity or density of development, except in accordance with the standards of this Code;
- d. Through any act or omission, failing to comply with any other provisions, procedures or standards as required by this code;
- e. Disturbing any landscaped area or vegetation required to be protected or maintained by this code;
- f. Installing, creating, erecting, altering or maintaining any sign without first obtaining the appropriate permits or required development approvals and complying with their terms and conditions;
- g. Failing to remove any sign installed, created, erected or maintained in violation of this code, or for which a previously approved permit has expired.

1.3.5 Violation Notice

The following procedures shall be used in citing violations of these regulations:

- a. The first notice shall be by certified mail or by other provable means of service, which notice shall state that the violation must cease within fourteen (14) calendar days from the date of receipt of the notice. In cases where a health hazard or emergency may exist, or where removal of the violation is deemed imperative by the Director or his or her designated representative, the fourteen (14) day limit may be decreased. The notice may indicate potential penalties for violation.
- b. A final notice shall be by certified mail or by other provable means of service if the violation has not been corrected within the time period set forth in the first notice. The final notice shall indicate the dates and time frames previously provided and shall state that the violation must cease within seven (7) calendar days from the date of receipt of the final notice. Should the violation not cease within seven (7) days of receipt, the matter will be referred to the City Attorney who will act as expeditiously as possible and who may also follow the processes under Section 1.3.8 or 1.3.9.
- c. Violations may be cited by the City.
- d. Notification under this section may also be made by placing a violation notice directly on the property if the provisions of this sub-section cannot be accomplished.
- e. The Director may grant one (1) extension of up to thirty (30) days should an extension be requested. Requests must be in writing and signed by the responsible persons. Should the Director approve the extension, a written approval will be sent to the responsible persons and added to the case file.

1.3.6 Investigatory Powers

- a. The Director is authorized to enter upon any property, excluding dwelling units, and at any reasonable time for the purpose of inspecting properties or performing other duties under these regulations.
- b. The City may investigate, and to the extent necessary administer an oath or affirmation, and upon request of any party, may subpoena witnesses, compel own motion, or upon request of any party, may subpoena witnesses, compel their attendance, adduce evidence, and require the production of any matter which is relevant of the investigation, including the existence, description, nature, custody, condition and location of any books, documents or other relevant facts or any other matter reasonably calculated to lead to discovery of admissible evidence.
- c. Upon failure without lawful excuse to obey a subpoena or to give testimony and upon reasonable notice to all persons affected thereby, the City may apply to any district court for an Order compelling compliance.

1.3.7 Penalties

Any responsible persons who fail to comply with or violates any of these regulations shall be subject to any penalties permitted by the Wyoming Statutes authorizing these regulations, or any other remedy available to the City including:

- a. ***Injunction.*** If any building or structure is erected, constructed, reconstructed, repaired, converted, or any building, structure, or land is used in violation of these regulations, the Director or any adjacent or other property owner who would be damaged by such violation, in addition to other remedies, may institute an injunction, mandamus, or other appropriate action or proceeding to stop the violation.
- b. ***Fine Generally.*** Any person, violating any provision of these regulations is guilty of a separate offense for each and every day during any portion of which any violation of any provision of these is committed, continued, or permitted by any such person and shall be punished by a fine of the maximum allowed by the State Statute for each offense. Daily fines may be calculated from the date of first notice to the date of the hearing being scheduled or until date of remedy if remedied prior to a hearing date being established.
- c. ***Fine for Misrepresentation of Subdivisions.*** Any person who knowingly authorizes, directs or aids in the publication, advertisement, distribution or circulation of any false statement or misrepresentation concerning any subdivision/development for sale, in this or any other state, and every person with knowledge that any such advertisement, prospectus, pamphlet or letter concerning land of any subdivision/development thereto contains any written statement that is false or fraudulent in any material part or who issues, circulates, publishes or distributes the same or who causes the same to be circulated, published or distributed, shall upon conviction be imprisoned for a period not to exceed thirty (30) days or be fined the maximum amount authorized by the Wyoming Statute. Each day of violation constitutes a new offense.
- d. ***Suspension of Permit or License.*** Violations of these regulations may result in suspending a permit, license, or approval where the terms of the approval are not being met as provided in subsection 1.3.8, below.
- e. ***Abatement of Violation.*** Violations of these regulations may be abated at the election of the Director. This procedure shall not be the sole remedy available, and the City may enforce these regulations in any manner provided by law as provided in section 1.3.9, below.
- f. ***Stay of Fines.*** Should a remedy be initiated by the responsible persons or during a public hearing process, a stay of fines may be permitted.

1.3.8 Revocation or Suspension of Permit or License

Suspension of any City issued permit, license or approval issued in accordance with these regulations or the Municipal Code may be made under the procedures and standards of this Section.

- a. A license, permit or approval shall be suspended if any of the following findings are made:

1. A use or development action upon the parent property has not obtained approvals required by this code;
 2. The physical development, use, development option, or subdivision, violates the terms or conditions of the permit or any approval of this code; or
 3. The permit, approval, or license was issued on the basis of erroneous or misleading information or misrepresentation.
- b. Rules of Procedure
1. A suspension proceeding shall be governed by the contested case rules adopted by the City.
- c. Process
1. The process shall follow the proceedings of Section 2.92.020 of the Municipal Code of the City of Cheyenne.

1.3.9 Abatement of Violations

Abatement of violations of these regulations shall be made under the procedures and standards of this Section.

- a. An Order to Abate shall be issued if there is:
1. Substantial evidence that a violation of this Code does exist; and
 2. Sufficient cause to evict or relocate an illegal use or rehabilitate, demolish, remove or repair an illegal development.
- b. Effect
1. If an Order to Abate is issued it shall mean that the land or development is in violation of this Code and the illegal activity shall be discontinued and rehabilitated, repaired, removed, or demolished in the manner and means specifically set forth in the Order to Abate.
- c. Rules of Procedure
1. An abatement proceeding shall be governed by the Wyoming Administrative Procedures Act, W.S. 16-3-107 through -115.
- d. Process

1. *Notice to Abate.* If a Final Notice has been issued as specified in Section 1.3.5.b and the responsible persons is found to not be in compliance after the timeline specified in the final notice, a notice to abate may be mailed to the landowner stating the date and time the abatement will take place. Notice shall be sent at least fourteen (14) days prior to the abatement.
2. *Notice of Hearing to Abate.* Should the responsible persons request to appeal the notice to abate after receiving the notice, a notice of a hearing to abate shall be mailed to the landowner stating the date, time, and location of the public hearing by certified mail, return receipt requested and stating the provisions of these regulations being violated. Notice shall be sent at least fourteen (14) days prior to the hearing.
3. *Hearing officer conclusion.* If, after the conclusion of the hearing, the Officer finds that an Order to Abate shall be issued, the Hearing Officer shall prepare an Order to Abate outlining findings and specifying the nature of the violation, the method of abatement, and the time within which the abatement shall be commenced and completed. The Hearing Officer shall provide the landowner a copy of the Order to Abate, by mail, on the day the order is made.
4. *Abatement.* The City's right to abate a violation of this Code, as provided in this Section, shall be cumulative to any other remedy provide by law.

e. Costs of abatement; notice of assessment

1. Upon completion of abatement by the city, the city shall complete a statement of costs. The statement shall include the costs of abatement and any other expenses incurred by the city, plus an administrative fee in the amount of fifty (50) percent of the abatement costs.
2. The city shall send written notice of the city's costs of the abatement to the owner of the property by certified mail, return receipt requested.
3. The city will engage an independent contractor for abatement of a violation, the city is authorized to bill the costs of the abatement plus the administrative fee provided by UDC 1.3.9.e.1, above, to the owner of the property that is the subject of the abatement.

f. Collection of costs of abatement; filing of lien

1. If an owner or occupant of property to which a statement of costs has been sent fails to pay the costs of abatement within thirty (30) days after notification, the city attorney may file an appropriate lien with the county clerk and ex officio registrar of deeds for Laramie County. The lien shall contain the legal description of the property involved, the amount of the unpaid bill, and a notice that the city claims a

lien for its costs of abatement. A lien for abatement costs may be foreclosed in accordance with the laws of the state of Wyoming. In addition, the city may pursue any remedies provided by law including assignment of the claim for costs of abatement to a collection agency.

1.3.10 Appeals

Appeals to the application and enforcement of these regulations shall be allowed by the procedures and criteria in Article 2. In general these regulations provide for the following distinct appeals.

- a. **Administrative Use Approval.** A process to administer the provisions of these regulations in a manner that best achieves the Purposes, Intent and Design Objectives of these regulations, and which may offer relief or alternative compliance to standards. Administrative Use Approvals are administrative decisions and only allowed where specifically identified in the provisions of these regulations, and subject to the procedures and criteria in Article 2.
- b. **Waiver.** A process to decide whether or not to apply a specific standard of the Subdivision Standards in Article 4, or decision to apply an alternative standard in a specific circumstance. Waivers are an administrative decision and only allowed subject to the procedures and criteria identified in Article 2.
- c. **Variance.** A process to decide whether to vary or adjust the strict application of a standard in Articles 5, 6 and 7. Variances are quasi-judicial decisions and allowed subject to the procedures and criteria identified in Article 2.
- d. **Appeal of an Administrative Decision.** A process to decide if any final administrative decision made by an administrative official in the interpretation or enforcement of the standards of this code are correct.

Section 4. Unified Development Code Subsection 1.3.6, Nonconformances, is renumbered as Subsection 1.3.11 and Unified Development Code Subsection 1.3.7, Fees, is renumbered 1.3.12.

Section 5. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 6. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

ORDINANCE NO. _____

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Section 2. That on February 6, 2023, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

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1.3 ADMINISTRATION AND ENFORCEMENT

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1.3.5 Violation Notice

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1.3.7 Penalties

1.3.8 Revocation or Suspension of Permit or License

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1.3.4 Violation Notice

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1.3.6-11 Nonconformances

1.3.7-12 Fees

1.3.1 Purpose

This Section establishes procedures through which the City seeks to ensure compliance with the provisions of this code and obtain corrections for violations of this code. This Section also sets forth the remedies and penalties that apply to violations of this code. The provisions of this Section are intended to encourage the voluntary correction of violations, where possible.

1.3.2 Compliance Required

Compliance with all provisions of this code is required by all persons owning, developing, dividing, managing, using, or occupying land or structures. Failure to comply with a standard, requirement, prohibition or limitation imposed by this code, or the terms or conditions of any permit, approval or authorization granted in accordance with this code, shall constitute a violation of this code punishable as provided in this Section.

1.3.3 Responsible Persons

The owner, tenant or occupant of any land or structure, and an architect, engineer, builder, contractor, agent or any other person who participates in, assists, directs, creates or maintains a situation that constitutes a violation of these regulations, may be held responsible for the violation and be subject to the remedies and penalties set forth in this Section.

1.3.14 Violations

It shall be unlawful for any building, structure, site element or use of land to be constructed, altered, maintained, or otherwise initiated in violation of these regulations, or in violation of any amendment, order or decision authorized under these regulations. In addition to any other remedy provided in these regulations, the City may institute proper actions or proceedings to prevent the unlawful activity or situation. Activities that constitute a violation include, but are not limited to, the following:

- a. Creating, expanding, replacing or changing any nonconformity except in compliance with this code;
- b. Reducing or diminishing the requirements for development, design or dimensional standards below the minimum required by this code;
- c. Increasing the intensity or density of development, except in accordance with the standards of this Code;
- d. Through any act or omission, failing to comply with any other provisions, procedures or standards as required by this code;
- e. Disturbing any landscaped area or vegetation required to be protected or maintained by this code;
- f. Installing, creating, erecting, altering or maintaining any sign without first obtaining the appropriate permits or required development approvals and complying with their terms and conditions;
- g. Failing to remove any sign installed, created, erected or maintained in violation of this code, or for which a previously approved permit has expired.

1.3.5 Violation Notice

The following procedures shall be used in citing violations of these regulations:

- a. The first notice shall be by certified mail or by other provable means of service, which notice shall state that the violation must cease within fourteen (14) calendar days from the date of receipt of the notice. In cases where a health hazard or emergency may exist, or where removal of the violation is deemed imperative by the Director or his or her designated representative, the fourteen (14) day limit may be decreased. The notice may indicate potential penalties for violation.
- b. A final notice shall be by certified mail or by other provable means of service if the violation has not been corrected within the time period set forth in the first notice. The final notice shall indicate the dates and time frames previously provided and shall state that the violation must cease within seven (7) calendar days from the date of receipt of the final notice. Should the violation not cease within seven (7) days of receipt, the matter will be referred to the City Attorney who will act as expeditiously as possible and who may also follow the processes under Section 1.3.8 or 1.3.9.
- c. Violations may be cited by the City.
- d. Notification under this section may also be made by placing a violation notice directly on the property if the provisions of this sub-section cannot be accomplished.
- e. The Director may grant one (1) extension of up to thirty (30) days should an extension be requested. Requests must be in writing and signed by the responsible persons. Should the Director approve the extension, a written approval will be sent to the responsible persons and added to the case file.

1.3.2-6 Investigatory Powers

- a. The Director is authorized to enter upon any property, excluding dwelling units, and at any reasonable time for the purpose of inspecting properties or performing other duties under these regulations.
- ~~a-b.~~ The City may investigate, and to the extent necessary administer an oath or affirmation, and upon request of any party, may subpoena witnesses, compel own motion, or upon request of any party, may subpoena witnesses, compel their attendance, adduce evidence, and require the production of any matter which is relevant of the investigation, including the existence, description, nature, custody, condition and location of any books, documents or other relevant facts or any other matter reasonably calculated to lead to discovery of admissible evidence.
- ~~b. If any person subject to the provisions of these regulations has records, as described in Wyoming Statutes 18-5-311(b), located outside the State of Wyoming, the person shall either make them available directly to the City, or available to a representative of the City to examine in the place where they are maintained.~~

- c. Upon failure without lawful excuse to obey a subpoena or to give testimony and upon reasonable notice to all persons affected thereby, the City may apply to any district court for an Order compelling compliance.
- d. ~~The Director is authorized to enter upon any property, excluding dwelling units, and at any reasonable time for the purpose of inspecting properties or performing other duties under these regulations.~~

1.3.3-7 Penalties

Any ~~person, firm or corporation which fails~~ responsible persons who fail to comply with or violates any of these regulations shall be subject to any penalties permitted by the Wyoming Statutes authorizing these regulations, or any other remedy available to the City including:

- a. **Injunction.** If any building or structure is erected, constructed, reconstructed, repaired, converted, or any building, structure, or land is used in violation of these regulations, the Director or any adjacent or other property owner who would be damaged by such violation, in addition to other remedies, may institute an injunction, mandamus, or other appropriate action or proceeding to stop the violation.
- b. **Fine Generally.** Any person, ~~upon conviction of~~ violating any provision of these regulations ~~shall be is~~ guilty of a ~~misdemeanor and, upon conviction, shall be fined not more than \$100.00 for each offense. Each day such violation continues shall constitute a separate offense.~~ separate offense for each and every day during any portion of which any violation of any provision of these is committed, continued, or permitted by any such person and shall be punished by a fine of the maximum allowed by the State Statute for each offense. Daily fines may be calculated from the date of first notice to the date of the hearing being scheduled or until date of remedy if remedied prior to a hearing date being established.
- c. **Fine for Misrepresentation of Subdivisions.** Any person who knowingly authorizes, directs or aids in the publication, advertisement, distribution or circulation of any false statement or misrepresentation concerning any subdivision/development for sale, in this or any other state, and every person with knowledge that any such advertisement, prospectus, pamphlet or letter concerning land of any subdivision/development thereto contains any written statement that is false or fraudulent in any material part or who issues, circulates, publishes or distributes the same or who causes the same to be circulated, published or distributed, shall upon conviction be imprisoned for a period not to exceed thirty (30) days or be fined ~~not to exceed \$750.00~~ the maximum amount authorized by the Wyoming Statute. Each day of violation constitutes a new offense.
- d. **Suspension of Permit or License.** Violations of these regulations may result in suspending a permit, license, or approval where the terms of the approval are not being met as provided in subsection 1.3.8, below.

- e. **Abatement of Violation.** Violations of these regulations may be abated at the election of the Director. This procedure shall not be the sole remedy available, and the City may enforce these regulations in any manner provided by law as provided in section 1.3.9, below.
- f. **Stay of Fines.** Should a remedy be initiated by the responsible persons or during a public hearing process, a stay of fines may be permitted.

1.3.8 Revocation or Suspension of Permit or License

Suspension of any City issued permit, license or approval issued in accordance with these regulations or the Municipal Code may be made under the procedures and standards of this Section.

- a. A license, permit or approval shall be suspended if any of the following findings are made:
 - 1. A use or development action upon the parent property has not obtained approvals required by this code;
 - 2. The physical development, use, development option, or subdivision, violates the terms or conditions of the permit or any approval of this code; or
 - 3. The permit, approval, or license was issued on the basis of erroneous or misleading information or misrepresentation.
- b. Rules of Procedure
 - 1. A suspension proceeding shall be governed by the contested case rules adopted by the City.
- c. Process
 - 1. The process shall follow the proceedings of Section 2.92.020 of the Municipal Code of the City of Cheyenne.

1.3.9 Abatement of Violations

Abatement of violations of these regulations shall be made under the procedures and standards of this Section.

- a. An Order to Abate shall be issued if there is:
 - 1. Substantial evidence that a violation of this Code does exist; and
 - 2. Sufficient cause to evict or relocate an illegal use or rehabilitate, demolish, remove or repair an illegal development.

b. Effect

1. If an Order to Abate is issued it shall mean that the land or development is in violation of this Code and the illegal activity shall be discontinued and rehabilitated, repaired, removed, or demolished in the manner and means specifically set forth in the Order to Abate.

c. Rules of Procedure

1. An abatement proceeding shall be governed by the Wyoming Administrative Procedures Act, W.S. 16-3-107 through -115.

d. Process

1. *Notice to Abate.* If a Final Notice has been issued as specified in Section 1.3.5.b and the responsible persons is found to not be in compliance after the timeline specified in the final notice, a notice to abate may be mailed to the landowner stating the date and time the abatement will take place. Notice shall be sent at least fourteen (14) days prior to the abatement.
2. *Notice of Hearing to Abate.* Should the responsible persons request to appeal the notice to abate after receiving the notice, a notice of a hearing to abate shall be mailed to the landowner stating the date, time, and location of the public hearing by certified mail, return receipt requested and stating the provisions of these regulations being violated. Notice shall be sent at least fourteen (14) days prior to the hearing.
3. *Hearing officer conclusion.* If, after the conclusion of the hearing, the Officer finds that an Order to Abate shall be issued, the Hearing Officer shall prepare an Order to Abate outlining findings and specifying the nature of the violation, the method of abatement, and the time within which the abatement shall be commenced and completed. The Hearing Officer shall provide the landowner a copy of the Order to Abate, by mail, on the day the order is made.
4. *Abatement.* The City's right to abate a violation of this Code, as provided in this Section, shall be cumulative to any other remedy provide by law.

e. Costs of abatement; notice of assessment

1. Upon completion of abatement by the city, the city shall complete a statement of costs. The statement shall include the costs of abatement and any other expenses incurred by the city, plus an administrative fee in the amount of fifty (50) percent of the abatement costs.

2. The city shall send written notice of the city's costs of the abatement to the owner of the property by certified mail, return receipt requested.
3. The city will engage an independent contractor for abatement of a violation, the city is authorized to bill the costs of the abatement plus the administrative fee provided by UDC 1.3.9.e.1, above, to the owner of the property that is the subject of the abatement.

f. Collection of costs of abatement; filing of lien

1. If an owner or occupant of property to which a statement of costs has been sent fails to pay the costs of abatement within thirty (30) days after notification, the city attorney may file an appropriate lien with the county clerk and ex officio registrar of deeds for Laramie County. The lien shall contain the legal description of the property involved, the amount of the unpaid bill, and a notice that the city claims a lien for its costs of abatement. A lien for abatement costs may be foreclosed in accordance with the laws of the state of Wyoming. In addition, the city may pursue any remedies provided by law including assignment of the claim for costs of abatement to a collection agency.

1.3.4—Violation Notice

~~The following procedures shall be used in citing violations of these regulations:~~

- ~~a. The first notice will be a certified letter or by other provable means of service indicating the violation must cease within 20 days from the date of receipt of the letter. In cases where a health hazard or emergency may exist, or where removal of the violation is deemed imperative by the Director or his or her designated representative, the 20 day limit may be decreased. The letter shall indicate the possible fine for violation.~~
- ~~b. A final notice will be sent if such violation is not corrected within the time period set forth in the first notice. The matter will also be referred to the City Attorney and that office will act as expeditiously as possible.~~
- ~~c. Violations may be cited by the Police Department.~~
- ~~d. Notification may also be made by placing a violation notice directly on the property, if the provisions of this sub-section cannot be accomplished.~~

1.3.5-10 Appeals

Appeals to the application and enforcement of these regulations shall be allowed by the procedures and criteria in Article 2. In general these regulations provide for the following distinct appeals.

- a. **Administrative Use Approval.** A process to administer the provisions of these regulations in a manner that best achieves the Purposes, Intent and Design Objectives of these regulations, and

which may offer relief or alternative compliance to standards. Administrative Use Approvals are administrative decisions and only allowed where specifically identified in the provisions of these regulations, and subject to the procedures and criteria in Article 2.

- b. **Waiver.** A process to decide whether or not to apply a specific standard of the Subdivision Standards in Article 4, or decision to apply an alternative standard in a specific circumstance. Waivers are an administrative decision and only allowed subject to the procedures and criteria identified in Article 2.
- c. **Variance.** A process to decide whether to vary or adjust the strict application of a standard in Articles 5, 6 and 7. Variances are quasi-judicial decisions and allowed subject to the procedures and criteria identified in Article 2.
- d. **Appeal of an Administrative Decision.** A process to decide if any final administrative decision made by an administrative official in the interpretation or enforcement of the standards ~~in Article 5 and Article 6~~ is of this code are correct.
- e. ~~**Other Appeals.** Any other appeal not addressed by the procedures in Article 2 shall be processed to the Planning Commission and City Council in the same manner as a text amendment.~~

Section 4. Unified Development Code Subsection 1.3.6, Nonconformances, is renumbered as Subsection 1.3.11 and Unified Development Code Subsection 1.3.7, Fees, is renumbered 1.3.12.

Section 5. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 6. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

PLANNING COMMISSION

FEBRUARY 6, 2023

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code Sections 1.3.

CASE NUMBER: PLN-22-00007

PREPARED BY: Connor White, Planner II, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code Sections 1.3 as outlined in this staff report and recommended by staff, noting the requests meets the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The proposed amendment is modifying and rewriting a majority of UDC Section 1.3. The proposed amendment adds a subsection outlining the purpose of this section which is something that many other sections of the code have at the beginning. A second section was added defining what compliance means. A third section was added defining who the responsible persons are and making it clear that any responsible person can be held accountable for the violation. This was added because the violation is not necessarily the property owners fault every time and staff believes that the correct people who created the violation should be held accountable.

The amendment adds to Subsection 1.3.4 Violations to expand further on what constitutes a violation. After this section the violation notice section was moved to be closer to the beginning and also updated to better outline the notice procedures the City will go through for citing violations. There will be two notice requirements, a first notice with a 14-day timeline and a final notice which will have a 7 day time line. Within the section it has also been added that the Director may grant one extension should it be requested.

The penalties section is changing with this amendment. The general fine for being in violation is being changed to be an every day fine from the start of the initial violation and can be the maximum fine allowed by State Statute which is currently \$750.00. Additional penalties have been added to this section as well. The first penalty added is suspension of a license or permit and the second added is abatement of the violation.

Suspension of a license or permit has been added to allow the City to suspend a license or permit through the existing process as laid out in the City Municipal Code. Rather than just issuing a fine, any property that does not comply with the zoning regulation can have a license or permit suspended until the violation is corrected. This allows the City to put more pressure on the reasonable persons that do not wish to comply with the code. Staff would like to note that this is a penalty that is a last resort and only happens at the end of the process after several notices have been given about the violation.

Abatement of a zoning violation allows the City to remove the violation and require the reasonable person to pay for the removal. The City would abate the violation similar to how the Compliance Division already abates nuisances. There will be a notice to abate the property which is given 14 days prior to the abatement. Within that 14 days the responsible persons may appeal the notice to abate. Should the appeal be submitted within the 14 days a hearing will then be scheduled where a hearing officer will determine if there will be an Order to Abate or not. Staff would like to note that this is a penalty that is a last resort and only happens at the end of the process after several notices have been given about the violation. This is only meant to be used when a reasonable person is unwilling to work with staff on coming into compliance.

This amendment is to allow the City to better enforce the zoning regulations and gives the City more tools to do so. Not all of the penalties are meant to be used for every violation. The goal is to bring people into compliance before stricter penalties are imposed. This amendment also clarifies the notification process, who is responsible and clearly outlines the different penalties.

PROPOSED AMENDMENTS:

Modifications and additions to 1.3 to include all the following:

- 1.3.1 Purpose
- 1.3.2 Compliance Required
- 1.3.3 Responsible Persons
- 1.3.4 Violations
- 1.3.5 Violation Notice
- 1.3.6 Investigatory Powers
- 1.3.7 Penalties
- 1.3.8 Revocation or Suspension of Permit or License
- 1.3.9 Abatement of Violation
- ~~1.3.4 Violation Notice~~
- 1.3.10 Appeals
- 1.3.11 Nonconformances
- 1.3.12 Fees

1.3.1 Purpose

This Section establishes procedures through which the City seeks to ensure compliance with the provisions of this code and obtain corrections for violations of this code. This section also sets forth the remedies and penalties that apply to violations of this code. The provisions of this Section are intended to encourage the voluntary correction of violations, where possible.

1.3.2 Compliance Required

Compliance with all provisions of this code is required by all persons owning, developing, dividing, managing, using, or occupying land or structures. Failure to comply with a standard, requirement, prohibition, or limitation imposed by this code, or the terms or conditions of any permit, approval, or authorization granted in accordance with this code, shall constitute a violation of this code punishable as provided in this Section.

1.3.3 Responsible Persons

The owner, tenant, or occupant of any land or structure, and an architect, engineer, builder, contractor, agent, or any other person who participates in, assists, directs, creates, or maintains a situation that constitutes a violation of these regulations, may be held responsible for the violation and be subject to the remedies and penalties set forth in this Section.

1.3.4 Violations

It shall be unlawful for any building, structure, site element or use of land to be constructed, altered, maintained, or otherwise initiated in violation of these regulations, or in violation of any amendment, order or decision authorized under these regulations. In addition to any other remedy provided in these regulations, the City may institute proper actions or proceedings to prevent the unlawful activity or situation. Activities that constitute a violation include, but are not limited to, the following:

- a. Creating, expanding, replacing, or changing any nonconformity except in compliance with this code;
- b. Reducing or diminishing the requirements for development, design, or dimensional standards below the minimum required by this code;
- c. Increasing the intensity or density of development, except in accordance with the standards of this Code; or
- d. Through any act or omission, failing to comply with any other provisions, procedures, or standards as required by this code
- e. Disturbing any landscaped area or vegetation required to be protected or maintained by this code;
- f. Installing, creating, erecting, altering, or maintaining any sign without first obtaining the appropriate permits or development approvals, where approvals are required, and complying with their terms and conditions;
- g. Failing to remove any sign installed, created, erected, or maintained in violation of this code, or for which the permit has expired;

1.3.5 Violation Notice

The following procedures shall be used in citing violations of these regulations:

- a. The first notice will be a certified letter or by other provable means of service indicating the violation must cease within 14 calendar days from the date of receipt of the letter. In cases where a health hazard or emergency may exist, or where removal of the violation is deemed imperative by the Director or his or her designated representative, the 14-day limit may be decreased. The letter may indicate potential penalties for violation.
- b. A final notice will be sent if such violation is not corrected within the time period set forth in the first notice. This letter will indicate the dates and time frames previously given and indicate the violation must cease within 7 calendar days from the date of receipt of the letter. Should the violation not cease within 7-days of receipt, the matter will be referred to the City Attorney and that office will act as expeditiously as possible, and the City Attorney may also follow the processes under Section 1.3.8 or 1.3.9.
- c. Violations may be cited by the City.
- d. Notification may also be made by placing a violation notice directly on the property if the provisions of this sub-section cannot be accomplished.
- e. The Director may grant one extension of up to 30 days should an extension be requested. Requests must be in writing and signed by the responsible persons. Should the Director approve the extension, a written approval will be sent to the responsible persons and added to the case file.

1.3.26 Investigatory Powers

- a. The Director is authorized to enter upon any property, excluding dwelling units, and at any reasonable time for the purpose of inspecting properties or performing other duties under these regulations.

- ab. The City may investigate, and to the extent necessary administer an oath or affirmation, and upon request of any party, may subpoena witnesses, compel own motion, or upon request of any party, may subpoena witnesses, compel their attendance, adduce evidence, and require the production of any matter which is relevant of the investigation, including the existence, description, nature, custody, condition and location of any books, documents or other relevant facts or any other matter reasonably calculated to lead to discovery of admissible evidence.
- ~~b. If any person subject to the provisions of these regulations has records, as described in Wyoming Statutes 18-5-311(b), located outside the State of Wyoming, the person shall either make them available directly to the City, or available to a representative of the City to examine in the place where they are maintained.~~
- c. Upon failure without lawful excuse to obey a subpoena or to give testimony and upon reasonable notice to all persons affected thereby, the City may apply to any district court for an Order compelling compliance.
- ~~d. The Director is authorized to enter upon any property, excluding dwelling units, and at any reasonable time for the purpose of inspecting properties or performing other duties under these regulations.~~

1.3.37 Penalties

Any ~~person, firm or corporation~~ responsible persons ~~which~~ who fails to comply with or violates any of these regulations shall be subject to any penalties permitted by the Wyoming Statutes authorizing these regulations, or any other remedy available to the City including:

- a. **Injunction.** If any building or structure is erected, constructed, reconstructed, repaired, converted, or any building, structure, or land is used in violation of these regulations, the Director or any adjacent or other property owner who would be damaged by such violation, in addition to other remedies, may institute an injunction, mandamus, or other appropriate action or proceeding to stop the violation.
- b. **Fine Generally.** ~~Any person, upon conviction of violating any provision of these regulations shall be guilty of a misdemeanor and, upon conviction, shall be fined not more than \$100.00 for each offense. Each day such violation continues shall constitute a separate offense. Any person violating any provisions of these regulations is guilty of a separate offense for each and every day during any portion of which any violation of any provision of these is committed, continued, or permitted by any such person and shall be punished by a fine of the maximum allowed by the State Statute for each offense. Daily fines may be calculated from the date of first notice to the date of the hearing being scheduled or until date of remedy if remedied prior to a hearing date being established.~~
- c. **Fine for Misrepresentation of Subdivisions.** Any person who knowingly authorizes, directs or aids in the publication, advertisement, distribution or circulation of any false statement or misrepresentation concerning any subdivision/development for sale, in this or any other state, and every person with knowledge that any such advertisement, prospectus, pamphlet or letter concerning land of any subdivision/development thereto contains any written statement that is false or fraudulent in any material part or who issues, circulates, publishes or distributes the same or who causes the same to be circulated, published or distributed, shall upon conviction be imprisoned for a period not to exceed 30 days or be fined ~~not to exceed \$750.00~~ the maximum allowed by the State Statute. Each day of violation constitutes a new offense.
- d. **Suspension of Permit or License.** Violations of these regulations may result in suspending a permit, license, or approval where the terms of the approval are not being met as provided in subsection 1.3.8, below.
- e. **Abatement of Violation.** Violations of these regulations may be abated at the election of the Director. This procedure shall not be the sole remedy available, and the City may enforce these regulations in any manner provided by law as provided in section 1.3.9, below.
- f. **Stay of Fines.** Should a remedy be initiated by the responsible persons or during a public hearing process, a stay of fines may be permitted.

1.3.8 Suspension of Permit or License

Suspension of any City issued permit, license or approval issued in accordance with these regulations or the Municipal Code may be made under the procedures and standards of this Section.

- a. A license, permit or approval shall be suspended if any of the following findings are made:
 - 1. A use or development action upon the parent property has not obtained approvals required by this code; or

2. The physical development, use, development option, or subdivision, violates the terms or conditions of the permit or any approval of this code; or
3. The permit, approval, or license was issued on the basis of erroneous or misleading information or misrepresentation.
- b. Rules of Procedure
 1. A suspension proceeding shall be governed by the contested case rules adopted by the City.
- c. Process
 1. The process shall follow the proceedings of Section 2.92.020 of the Municipal Code of the City of Cheyenne.

1.3.9 Abatement of Violations

Abatements of violations of these regulations shall be made under the procedures and standards of this Section.

- a. An Order to Abate shall be issued if there is:
 1. Substantial evidence that a violation of this Code does exist; and
 2. Sufficient cause to evict or relocate an illegal use or rehabilitate, demolish, remove or repair an illegal development.
- b. Effect
 1. If an Order to Abate is issued it shall mean that the land or development is in violation of this Code and the illegal activity shall be discontinued and rehabilitated, repaired, removed, or demolished in the manner and means specifically set forth in the Order to Abate.
- c. Rules of Procedure
 1. An abatement proceeding shall be governed by the Wyoming Administrative Procedures Act, §16-3-101.
- d. Process
 1. *Notice to Abate.* If a Final Notice has been issued as specified in Section 1.3.5.b and the responsible persons is found to not be in compliance after the timeline specified in the final notice, a notice to abate may be mailed to the landowner stating the date and time the abatement will take place. Notice shall be sent at least 14 days prior to the abatement.
 2. *Notice of Hearing to Abate.* Should the responsible persons request to appeal the notice to abate after receiving the notice, a notice of a hearing to abate shall be mailed to the landowner stating the date, time, and location of the public hearing by certified mail, return receipt requested and stating the provisions of these regulations being violated. Notice shall be sent at least 14 days prior to the hearing.
 3. *Hearing officer conclusion.* If, after the conclusion of the hearing, the Officer finds that an Order to Abate shall be issued, the Hearing Officer shall prepare an Order to Abate outlining findings and specifying the nature of the violation, the method of abatement, and the time within which the abatement shall be commenced and completed. The Hearing Officer shall provide the landowner a copy of the Order to Abate, by mail, on the day the order is made.
 4. *Abatement.* The City's right to abate a violation of this Code, as provided in this Section, shall be cumulative to any other remedy provide by law.
 5. *Abatement.* The City's right to abate a violation of this Code, as provided in this Section, shall be cumulative to any other remedy provide by law.
- e. Costs of abatement; notice of assessment
 1. Upon completion of abatement by the city, the city shall complete a statement of costs. The statement shall include the costs of abatement and any other expenses incurred by the city, plus an administrative fee in the amount of fifty (50) percent of the abatement costs.
 2. The city shall send written notice of the city's costs of the abatement to the owner of the property by certified mail, return receipt requested.
 3. The city will engage an independent contractor for abatement of a violation, the city is authorized to bill the costs of the abatement plus the administrative fee provided by UDC 1.3.9.e.1, above, to the owner of the property that is the subject of the abatement.
- f. Collection of costs of abatement; filing of lien
 1. If an owner or occupant of property to which a statement of costs has been sent fails to pay the costs of abatement within thirty (30) days after notification, the city attorney may file an appropriate lien with the county clerk and ex officio registrar of deeds for Laramie County. The

lien shall contain the legal description of the property involved, the amount of the unpaid bill, and a notice that the city claims a lien for its costs of abatement. A lien for abatement costs may be foreclosed in accordance with the laws of the state of Wyoming. In addition, the city may pursue any remedies provided by law including assignment of the claim for costs of abatement to a collection agency.

1.3.510 Appeals

- d. **Appeal of an Administrative Decision.** A process to decide if any final administrative decision made by an administrative official in the interpretation or enforcement of the standards in Article 5 and Article 6 is of this code are correct.
- e. ~~**Other Appeals.** Any other appeal not addressed by the procedures in Article 2 shall be processed to the Planning Commission and City Council in the same manner as a text amendment.~~

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

This proposed text amendment is necessary to help better enforce the goals and policies of the Comprehensive Plan and the Unified Development Code (UDC). The amendment does not make changes to the goals and policies but allows the City to better enforce its regulations.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-610 (a): Action to prevent violations authorized.

(a) If any building or structure is erected, constructed, reconstructed, altered, repaired, converted or maintained, or if any building, structure or land is used in violation of this article or of any ordinance or other regulation made under its authority, the proper authorities of the city or town, in addition to other remedies prescribed by ordinance, may institute any appropriate action to prevent:

- (i) The violation;
- (ii) The occupancy of the building, structure or land; or
- (iii) Any illegal act, conduct, business or use in or about the premises.

Assessment: This amendment proposes modifying the Unified Development Code for the purposes of improving the City's ability to better enforce the existing zoning regulations.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment would not adversely impact the general health, safety and public welfare of Cheyenne.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code Sections 1.3 as outlined in this staff report and recommended by staff, noting the requests meets the review criteria of UDC 2.4.1.d.

ATTACHMENTS:

1. Current UDC Regulations

ARTICLE 1

GENERAL PROVISIONS

1.3 ADMINISTRATION AND ENFORCEMENT

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- 1.3.1 Violations
- 1.3.2 Investigatory Powers
- 1.3.3 Penalties
- 1.3.4 Violation Notice
- 1.3.5 Appeals
- 1.3.6 Nonconformances
- 1.3.7 Fees

1.3.1 Violations

It shall be unlawful for any building, structure, site element or use of land to be constructed, altered, maintained or otherwise initiated in violation of these regulations, or in violation of any amendment, order or decision authorized under these regulations. In addition to any other remedy provided in these regulations, the City may institute proper actions or proceedings to prevent the unlawful activity or situation.

1.3.2 Investigatory Powers

- a. The City may investigate, and to the extent necessary administer an oath or affirmation, and upon request of any party, may subpoena witnesses, compel own motion, or upon request of any party, may subpoena witnesses, compel their attendance, adduce evidence, and require the production of any matter which is relevant of the investigation, including the existence, description, nature, custody, condition and location of any books, documents or other relevant facts or any other matter reasonably calculated to lead to discovery of admissible evidence.
- b. If any person subject to the provisions of these regulations has records, as described in Wyoming Statutes 18-5-311(b), located outside the State of Wyoming, the person shall either make them available directly to the City, or available to a representative of the City to examine in the place where they are maintained.
- c. Upon failure without lawful excuse to obey a subpoena or to give testimony and upon reasonable notice to all persons affected thereby, the City may apply to any district court for an Order compelling compliance.
- d. The Director is authorized to enter upon any property, excluding dwelling units, and at any reasonable time for the purpose of inspecting properties or performing other duties under these regulations.

1.3.3 Penalties

Any person, firm or corporation which fails to comply with or violates any of these regulations shall be subject to any penalties permitted by the Wyoming Statutes authorizing these regulations, or any other remedy available to the City including:

- a. **Injunction.** If any building or structure is erected, constructed, reconstructed, repaired, converted, or any building, structure, or land is used in violation of these regulations, the Director or any adjacent or other property owner who would be damaged by such violation, in addition to other remedies, may institute an injunction, mandamus, or other appropriate action or proceeding to stop the violation.
- b. **Fine Generally.** Any person, upon conviction of violating any provision of these regulations shall be guilty of a misdemeanor and, upon conviction, shall be fined not more than \$100.00 for each offense. Each day such violation continues shall constitute a separate offense.
- c. **Fine for Misrepresentation of Subdivisions.** Any person who knowingly authorizes, directs or aids in the publication, advertisement, distribution or circulation of any false statement or misrepresentation concerning any subdivision/development for sale, in this or any other state, and every person with knowledge that any such advertisement, prospectus, pamphlet or letter concerning land of any subdivision/development thereto contains any written statement that is false or fraudulent in any material part or who issues, circulates, publishes or distributes the same or who causes the same to be circulated, published or distributed, shall upon conviction be imprisoned for a period not to exceed 30 days or be fined not to exceed \$750.00. Each day of violation constitutes a new offense.

1.3.4 Violation Notice

The following procedures shall be used in citing violations of these regulations:

- a. The first notice will be a certified letter or by other provable means of service indicating the violation must cease within 20 days from the date of receipt of the letter. In cases where a health hazard or emergency may exist, or where removal of the violation is deemed imperative by the Director or his or her designated representative, the 20 day limit may be decreased. The letter shall indicate the possible fine for violation.
- b. A final notice will be sent if such violation is not corrected within the time period set forth in the first notice. The

ARTICLE 1

GENERAL PROVISIONS

1.3 ADMINISTRATION AND ENFORCEMENT

matter will also be referred to the City Attorney and that office will act as expeditiously as possible.

- c. Violations may be cited by the Police Department.
- d. Notification may also be made by placing a violation notice directly on the property, if the provisions of this sub-section cannot be accomplished.

1.3.5 Appeals

Appeals to the application and enforcement of these regulations shall be allowed by the procedures and criteria in Article 2. In general these regulations provide for the following distinct appeals.

- a. **Administrative Use Approval.** A process to administer the provisions of these regulations in a manner that best achieves the Purposes, Intent and Design Objectives of these regulations, and which may offer relief or alternative compliance to standards. Administrative Use Approvals are administrative decisions and only allowed where specifically identified in the provisions of these regulations, and subject to the procedures and criteria in Article 2.
- b. **Waiver.** A process to decide whether or not to apply a specific standard of the Subdivision Standards in Article 4, or decision to apply an alternative standard in a specific circumstance. Waivers are an administrative decision and only allowed subject to the procedures and criteria identified in Article 2.
- c. **Variance.** A process to decide whether to vary or adjust the strict application of a standard in Articles 5, 6 and 7. Variances are quasi-judicial decisions and allowed subject to the procedures and criteria identified in Article 2.
- d. **Appeal of an Administrative Decision.** A process to decide if any final administrative decision made by an administrative official in the interpretation or enforcement of the standards in Article 5 and Article 6 is correct.
- e. **Other Appeals.** Any other appeal not addressed by the procedures in Article 2 shall be processed to the Planning Commission and City Council in the same manner as a text amendment.

1.3.6 Nonconformances

- a. **Generally.** Within the zoning districts established by this Title and amendments that may later be adopted, there exist land and uses of land which were lawful before this

Title was passed or amended, but which would be affected by the terms of this Title or future amendments. Therefore, it is the intent of this Title to permit these nonconforming uses and conditions to continue, provided that:

- 1. The continuation of the nonconformance is not detrimental to the public health, safety and welfare;
 - 2. Any future development activity on the site seeks to conform to the code to the extent practical; and
 - 3. All efforts to alleviate or gradually eliminate the undesirable consequences of nonconformances are made. It is further the intent of this Title that these nonconforming uses and conditions shall not be used as grounds for allowing other uses or conditions prohibited elsewhere in the district.
- b. **Nonconforming Structures.** Structures that were legally constructed prior to the adoption or amendment of this code, but which could not be constructed under the terms of this code or subsequent amendment are considered nonconforming structures. A nonconforming structure may continue to exist or expand subject to the following:
 - 1. An extension of a structure, or placement of an accessory building, which does not further encroach upon the violated yard requirement, may be granted upon the approval of the Director, if it is found the extension or placement of structure is not detrimental to the purposes or intent of this Title.
 - 2. If destroyed by fire or other natural disaster, the structure may be restored to its original condition if the restoration is started within one year. A two-year extension may be granted by the Director for a building or structure provided a written request for such extension is received from the building owner prior to the end of the original one-year period.
 - 3. If the structure is determined obsolete or substandard by virtue of any applicable code beyond this Title, and the cost of improvement or restoration exceeds fifty percent of the fair market value of the structure, then the right to maintain the nonconformance shall terminate.